| Date | Time | Event Description | Involved Parties | Legal or Regulatory Reference |
|---|---|---|---|---|
| Tuesday, March 29, 2022 | | Turnage contacted EEO Office | Kevin Turnage | EEO |
| Tuesday, July 12, 2022 | | Greve allegedly called Edison questioning patient assignments | Tonie Greve, Bertha Edison | |
| Tuesday, July 19, 2022 | | Skype meeting; Hill alleged hostile work environment | Elizabeth Hill, Tonie Greve | |
| Thursday, July 21, 2022 | | Hill emailed Turnage about hostile work environment | Elizabeth Hill, Kevin Turnage | |
| Friday, July 22, 2022 | | Edison emailed Turnage detailing hostile incidents with Greve | Bertha Edison, Tonie Greve | |
| Monday, August 1, 2022 | | Greve required to participate in harassment inquiry | Tonie Greve | |
| Tuesday, September 20, 2022 | | Greve documented abusive patient call re: PCP change | Tonie Greve | |
| Thursday, October 6, 2022 | | Greve emailed about Reasonable Accommodation and triage assignment | Tonie Greve, Jason White, Candace Lee | ADA |
| Friday, December 2, 2022 | | Candace Lee sent HR Huddle notes | Candace Lee | |
| Saturday, December 3, 2022 | | Turnage replied questioning ambulatory care decisions | Kevin Turnage | |
| Monday, December 19, 2022 | | Turnage filed hostile work environment claim against Greve | Kevin Turnage, George Patton | |
| Tuesday, December 20, 2022 | | FMLA and RA process initiated for Turnage | Kevin Turnage | FMLA |
| Sunday, January 1, 2023 | | Brandi Benjamin began GS-13 role | Brandi Benjamin | |
| Friday, January 13, 2023 | | Turnage gave FMLA papers to Benjamin | Kevin Turnage | FMLA |
| Tuesday, January 17, 2023 | | Greve amended EEO complaint: discrimination and retaliation | Tonie Greve | EEO |
| Thursday, January 19, 2023 | | Swab rotation assignment emailed by Jason White | Jason White, Nurses | |
| Tuesday, February 7, 2023 | | Turnage gave additional FMLA papers | Kevin Turnage | FMLA |
| Tuesday, February 14, 2023 | | Benjamin informed Turnage more FMLA info needed | Brandi Benjamin | FMLA |
| Wednesday, March 1, 2023 | | Turnage followed up on FMLA paperwork | Kevin Turnage | FMLA |
| Thursday, March 2, 2023 | | Turnage received low PMAP score | Kevin Turnage | PMAP |
| Friday, March 3, 2023 | | PMAP grievance filed; Lund contacted EEO | Kevin Turnage, Debra Ward Lund | 5 U.S.C. § 2302(b)(9) |
| Monday, March 6, 2023 | | Ward Lund advised Patton would initiate EEO investigation Sexual Harrassment Complaint | Debra Ward Lund | |
| Tuesday, March 21, 2023 | 7:33 AM | Email submitted by Kevin Turnage reporting Sexual Harassment and Hostile Work Environment and agency failure. Within hours of this protected disclosure, Mr. Turnage was placed on 10 business days of administrative leave. All government-issued property was confiscated, and he was escorted off federal property by security personnel. | Kevin Turnage; Executive Leadership; Federal Security Personnel | 5 U.S.C. § 2302(b)(8); Whistleblower Protection Act |
| Tuesday, March 21, 2023 | 10:14 AM | At 10:14 AM, Kevin Turnage was contacted by the CEO and directed to report to Administration. During this meeting, he was placed on 10 business days of Administrative Leave—just 2 hours and 41 minutes after he escalated a protected disclosure to headquarters regarding hostile work environment and agency failure. | Kevin Turnage; CEO, Phoenix Indian Medical Center; Executive Leadership | 5 U.S.C. § 2302(b)(8); Whistleblower Protection Act |
| Tuesday, March 21, 2023 | 11:15 AM | Turnage placed on admin leave, access revoked, escorted out | Kevin Turnage, PIMC | 5 U.S.C. § 2302(b)(8) |
| Thursday, March 23, 2023 | | Benjamin issued illegal directive; rescinded per OSC | Brandi Benjamin | |
| Friday, March 31, 2023 | | Turnage detailed to lesser position for 120 days | Kevin Turnage | |
| Saturday, April 1, 2023 | | Turnage began Acting Policy Officer detail | Kevin Turnage | |
| Wednesday, April 12, 2023 | | EEO issued Final Interview and Right to File | Michelle Homer | EEO |
| Thursday, April 13, 2023 | | Turnage filed formal EEO complaint (HHS-IHS-0296-2023) | Kevin Turnage | EEO |
| Thursday, February 29, 2024 | | Email from Kevin Turnage to Debra Ward-Lund requesting establishment of Policy Committee. | Kevin Turnage; Debra Ward-Lund | |
| Thursday, February 29, 2024 | | Email from Debra Ward-Lund to Kevin Turnage requesting a high-level summary of policy concerns. | Debra Ward-Lund; Kevin Turnage | |
| Thursday, February 29, 2024 | | Email from Kevin Turnage to Debra Ward-Lund outlining significant compliance issues within policy governance. | Kevin Turnage; Debra Ward-Lund | |
| Thursday, February 29, 2024 | | Debra Ward-Lund acknowledged receipt ("Thank you, I will follow up and let you know if I need additional information.") – no further follow-up received. | Debra Ward-Lund; Kevin Turnage | |
| Thursday, February 29, 2024 | 10:13 AM | Turnage email to Debra Ward Lund re: Policy Committee | Kevin Turnage, Debra Ward Lund | |
| Thursday, February 29, 2024 | 11:08 AM | Turnage email to Debra Ward Lund re: Policy Committee | Kevin Turnage, Debra Ward Lund | |
| Thursday, February 29, 2024 | 11:21 AM | Turnage email to Debra Ward Lund re: Policy Committee | Kevin Turnage, Debra Ward Lund | |
| Friday, March 1, 2024 | 9:03 AM | Clinton Pope accuses Turnage of AI-written emails | Clinton Pope, Kevin Turnage | |
| Friday, March 1, 2024 | 9:03 AM | Email from Clinton Pope to Kevin Turnage regarding prior emails to Debra Ward-Lund; Pope accused Turnage of using AI and noted his own $20 AI subscription. | Clinton Pope; Kevin Turnage | |
| Tuesday, April 2, 2024 | 2:03 PM | Email from Kevin Turnage to Clinton Pope (content not provided in summary). | Kevin Turnage; Clinton Pope | |
| Wednesday, May 8, 2024 | | Routine policy update email sent | Kevin Turnage | |
| Friday, June 14, 2024 | | Policy follow-up re: overdue renewals | Kevin Turnage | |
| Monday, July 1, 2024 | | Turnage issued alert on expiring standing orders | Kevin Turnage | |
| Tuesday, July 2, 2024 | | Hoellein requested standing order notifications | Hoellein, Turnage | |
| Thursday, August 29, 2024 | | Policy email from Kevin Turnage to Clinton Pope regarding change in Radiation Safety Officer. | Kevin Turnage; Clinton Pope | |
| Friday, August 30, 2024 | | Email received from Endreya McCabe (content not provided). | Endreya McCabe; Kevin Turnage | |
| Monday, December 9, 2024 | | Complaint reported by Kevin Turnage to HHS Office of Inspector General (OIG). | Kevin Turnage; HHS-OIG | |
| Thursday, December 19, 2024 | | Complaint from McCabe; Turnage escalated to HHS OIG | Kevin Turnage; Endreya McCabe | |
| Tuesday, February 25, 2025 | | GAO High-Risk List reaffirmed IHS | GAO, IHS | GAO Oversight |
| Friday, March 7, 2025 | | PIMC Governing Body Bylaws approved | PIMC Leadership | |
| Monday, April 7, 2025 | | Comprehensive policy-governance escalation citing violations of 5 U.S.C. § 2302(b). | Kevin Turnage | 5 U.S.C. § 2302(b) |
| Tuesday, April 8, 2025 | | Memorandum for Record emailed to Executive Leadership; formal submission to HHS-OIG for policy governance failure. | Kevin Turnage; Executive Leadership; HHS-OIG | |
| Thursday, April 17, 2025 | | Turnage escalates policy violations under 5 U.S.C. § 2302 | Kevin Turnage | 5 U.S.C. § 2302 |
| Monday, April 21, 2025 | | Notice to OSC of imminent retaliation concern | Kevin Turnage, OSC | 5 U.S.C. § 2302(b)(8) |
| Tuesday, April 22, 2025 | | Email from McCabe rejecting Turnage's Quality Council report | Endreya McCabe | |
| Wednesday, April 30, 2025 | | Formal compliance memorandum submitted (details not provided). | Kevin Turnage | |
| Wednesday, May 14, 2025 | | OIG complaint submitted re: noncompliance & safety risks | Kevin Turnage | 5 U.S.C. § 2302 |
| Thursday, May 15, 2025 | | Memorandum sent by Kevin Turnage to HHS-OIG outlining ongoing compliance concerns. | Kevin Turnage; HHS-OIG | |
| Wednesday, May 21, 2025 | | Email from Kevin Turnage to Governing Body regarding policy issues and compliance risks. | Kevin Turnage; Governing Body | |
| Wednesday, May 21, 2025 | | Memorandum for Sentinel Event sent to Debra Ward-Lund and Clinton Pope. | Kevin Turnage; Debra Ward-Lund; Clinton Pope | |
| Wednesday, May 21, 2025 | | Teams meeting: Clinton Pope and Endreya McCabe inform Policy & Procedure Officer Kevin Turnage that he does not have authority to reject a policy. | Clinton Pope; Endreya McCabe; Kevin Turnage | |
| Wednesday, May 21, 2025 | | Kevin Turnage submits formal objection and requests legal clarification regarding policy-rejection authority. | Kevin Turnage | |
| Sunday, May 25, 2025 | | Memorandum for Record (details not provided). | Kevin Turnage | |
| Sunday, May 25, 2025 | | Memorandum to Governing Body (details not provided). | Kevin Turnage; Governing Body | |
| Sunday, May 25, 2025 | | Protected Disclosure Notice sent to Debra Ward-Lund, Clinton Pope, and Endreya McCabe. | Kevin Turnage; Debra Ward-Lund; Clinton Pope; Endreya McCabe | 5 U.S.C. § 2302(b)(8) |
| Sunday, May 25, 2025 | | Protected Disclosure Notice sent to Lund, Pope, McCabe | Kevin Turnage | 5 U.S.C. § 2302(b)(8) |
| Tuesday, May 27, 2025 | 1:37 PM | Email with attachment (recipients could not open) requesting clarification of policy authority and position duties. | Kevin Turnage; Endreya McCabe; Clinton Pope; Marlon White; Tabitha Wright | |
| Wednesday, May 28, 2025 | | Whistleblower-retaliation complaint filed with HHS-OIG. | Kevin Turnage; HHS-OIG | 5 U.S.C. § 2302(b)(8) |
| Wednesday, May 28, 2025 | 7:00 AM | Turnage requested clarification on workflow removal | Kevin Turnage, Pope, McCabe, Wright | |
| Wednesday, May 28, 2025 | 7:00 AM | Follow-up email from Kevin Turnage to Endreya McCabe, Clinton Pope, Marlon White, and Tabitha Wright formally requesting clarification of policy authority and position duties. | Kevin Turnage; Endreya McCabe; Clinton Pope; Marlon White; Tabitha Wright | |
| Wednesday, May 28, 2025 | 10:10 AM | Turnage requested clarification on workflow removal | Kevin Turnage, Pope, McCabe, Wright | |
| Wednesday, May 28, 2025 | 10:10 AM | Directive email from Clinton Pope to Kevin Turnage: "Remove yourself from all approval workflows." | Clinton Pope; Kevin Turnage | |
| Wednesday, May 28, 2025 | 12:06 PM | Turnage requested clarification on workflow removal | Kevin Turnage, Pope, McCabe, Wright | |
| Wednesday, May 28, 2025 | 12:06 PM | Kevin Turnage confirms removal from all approval workflows and reiterates formal objection, noting impairment of core duties (PD PX3147). | Kevin Turnage; Clinton Pope | |
| Wednesday, May 28, 2025 | 2:03 PM | Turnage requested clarification on workflow removal | Kevin Turnage, Pope, McCabe, Wright | |
| Wednesday, May 28, 2025 | 2:03 PM | Email response from Clinton Pope stating confidence that Turnage can still perform position duties; Endreya McCabe expressed uncertainty. | Clinton Pope; Kevin Turnage; Endreya McCabe | |
| Sunday, June 1, 2025 | | Radiation Safety & Asbestos Policy 374 days overdue | Kevin Turnage | |
| Monday, June 2, 2025 | | Report to Joint Commission (Incident No. 24831MAA-54955JSQ). | Kevin Turnage; Joint Commission | |
| Monday, June 9, 2025 | | Report to CMS Region 9: Violations of Conditions of Participation and policy-governance failures at PIMC. | Kevin Turnage; CMS Region 9 | 42 C.F.R. § 482 |
| Monday, June 9, 2025 | | Additional CMS Region 9 report: Policy compliance reviews. | Kevin Turnage; CMS Region 9 | |
| Monday, June 9, 2025 | | CMS Region 9 report: Undisclosed bed-capacity reduction at PIMC. | Kevin Turnage; CMS Region 9 | |
| Monday, June 9, 2025 | | FraudNet report to GAO: Material misrepresentation of hospital capacity by CEO Debra Ward-Lund during June 3–6 CMS survey. | Kevin Turnage; GAO FraudNet; Debra Ward-Lund | |
| Monday, June 9, 2025 | | Letter to Senator Mark Kelly and Senator Ruben Gallego outlining issues at PIMC. | Kevin Turnage; Sen. Mark Kelly; Sen. Ruben Gallego | |
| Monday, June 9, 2025 | | HHS-OIG report: Fraud, waste, and abuse allegations against Clinton Pope. | Kevin Turnage; HHS-OIG; Clinton Pope | |
| Monday, June 9, 2025 | | HHS-OIG report: Mismanagement and misrepresentation at PIMC. | Kevin Turnage; HHS-OIG | |
| Tuesday, June 10, 2025 | | HHS-OIG report: Crime, fraud, waste, and abuse by Clinton Pope (separate from June 9 report). | Kevin Turnage; HHS-OIG; Clinton Pope | |
| Tuesday, June 10, 2025 | | HHS-OIG report: Gross mismanagement due to compliance failures. | Kevin Turnage; HHS-OIG | |
| Tuesday, June 10, 2025 | | Memorandum: Implementation of revised policy review per Indian Health Manual Part 1, Chapter 1 (Transmittal Notice 24-16). | Kevin Turnage | IHM TN 24-16 |
| Tuesday, June 10, 2025 | | Legal analysis: Consequences of CEO's refusal to implement binding IHS policy directives (TN 24-16). | Kevin Turnage; Debra Ward-Lund | IHM TN 24-16 |
| Wednesday, June 11, 2025 | | Hostile meeting with Clinton Pope in which he continued to badger whistleblower. | Clinton Pope; Kevin Turnage | |
| Thursday, June 12, 2025 | | Joint Commission sentinel event reported | Kevin Turnage | Patient Safety |
| Thursday, June 19, 2025 | | CMS Report: Undisclosed bed capacity reduction | Kevin Turnage | 42 C.F.R. § 482 |
| Friday, June 20, 2025 | | Report to HHS OIG: Fraud, Waste, Abuse | Kevin Turnage | False Claims Act |
| Saturday, June 21, 2025 | | Memo to Execs: Clinton Pope override violated IHM TN 24-16 | Kevin Turnage, Clinton Pope | IHS Manual |
| Wednesday, June 25, 2025 | | Memorandum of Record sent to Naomi Hickson, Compliance Officer at Phoenix Indian Medical Center. Subject: Part 1, Chapter 1 – Directives must be reviewed at a minimum every two years (Indian Health Manual). Action requested. | Kevin Turnage; Naomi Hickson | Indian Health Manual, Part 1, Chapter 1 |
| Wednesday, June 25, 2025 | 11:48 AM | Supplemental information submitted to OSC regarding pattern of retaliation and policy suppression. | Kevin Turnage; OSC | 5 U.S.C. § 2302(b)(8) |
| Wednesday, June 25, 2025 | 4:40 PM | Memorandum for Record to Naomi Hixson, Compliance Officer, documenting PIMC's failure to comply with IHM Part 1, Chapter 1, per Transmittal Notice 24-16. | Kevin Turnage; Naomi Hixson | Indian Health Manual TN 24-16 |
| Wednesday, June 25, 2025 | 04:40 PM | Email to Endreya McCabe and Governing Body notifying leadership of 47 invalid policies and institutional noncompliance with governance rules. | Kevin Turnage; Endreya McCabe; PIMC Governing Body | Indian Health Manual TN 24-16 |
| Thursday, June 26, 2025 | 12:00 PM | Email to Naomi Hixson referencing IHM Part 1, Chapter 1, Section 1-1.6(B)(2) (policy approval and authority). | Kevin Turnage; Naomi Hixson | Indian Health Manual § 1-1.6(B)(2) |
| Thursday, June 26, 2025 | 12:50 PM | Submitted complaint to OPM Classification Appeals regarding misclassification of duties and retaliation. | Kevin Turnage; OPM | 5 C.F.R. § 511; 5 U.S.C. § 2302 |
| Thursday, June 26, 2025 | 01:21 PM | Filed formal retaliation complaint to IHS HQ DMEEO citing Title VII, 5 U.S.C. § 2302, 5 C.F.R. Part 735, and IHS Anti-Abuse Policy. | Kevin Turnage; IHS HQ DMEEO | Title VII; 5 U.S.C. § 2302; 5 C.F.R. Part 735 |
| Thursday, June 26, 2025 | 01:25 PM | Submitted additional protected disclosure documentation and correspondence to OSC. | Kevin Turnage; OSC | 5 U.S.C. § 2302(b)(8) |
| Thursday, June 26, 2025 | 01:28 PM | Submitted formal request for Congressional assistance to Senator Ruben Gallego's casework office. | Kevin Turnage; Senator Ruben Gallego's Office | Constituent Services Request |
| Thursday, June 26, 2025 | 01:40 PM | Submitted MSPB complaint for adverse actions and whistleblower reprisal. | Kevin Turnage; MSPB | 5 U.S.C. § 2302(b) |
| Thursday, June 26, 2025 | 01:49 PM | Reported systemic internal control failures and IHM TN 24-16 violations to GAO via FraudNet. | Kevin Turnage; GAO | Indian Health Manual TN 24-16; 31 U.S.C. §§ 3512, 3729 |
| Thursday, June 26, 2025 | 02:28 PM | Reported policy obstruction and federal duty interference to the House Oversight Committee. | Kevin Turnage; U.S. House Committee on Oversight and Accountability | 5 U.S.C. § 2302(b); Oversight Reporting Authority |
| Thursday, June 26, 2025 | 02:31 PM | Requested emergency HR intervention from IHS HQ. | Kevin Turnage; IHS HQ HR | Personnel Management Compliance Request |
| Thursday, June 26, 2025 | 02:39 PM | Submitted report to OMB regarding violations of federal administrative control standards. | Kevin Turnage; Office of Management and Budget | OMB Circular A-123; 31 U.S.C. § 3512 |
| Thursday, June 26, 2025 | 02:45 PM | Emailed IHS HQ HR reporting obstruction, retaliation, and mismanagement. | Kevin Turnage; IHS HQ HR | 5 U.S.C. § 2302; IHS Anti-Abuse Policy |
| **Friday, June 27, 2025** | | **Turnage placed on administrative leave again after filings** | **Kevin Turnage** | **5 U.S.C. § 2302(b)(8)** |
| Friday, June 27, 2025 | 08:24 AM | Submitted memorandum to IHS HQ DRPC citing formal obstruction of policy responsibilities under PX3147. | Kevin Turnage; IHS HQ DRPC | Position Description PX3147; Indian Health Manual TN 24-16 |
| Friday, June 27, 2025 | 01:20 PM | Reported laboratory CLIA compliance concerns to CMS. | Kevin Turnage; CMS CLIA Division | 42 C.F.R. § 493 |
| Friday, June 27, 2025 | 01:23 PM | Filed CLIA-related compliance report with AZDHS. | Kevin Turnage; Arizona Department of Health Services | 42 C.F.R. § 493; State CLIA Regulations |
| Friday, June 27, 2025 | 01:28 PM | Received written notice from Endreya McCabe placing Turnage on administrative leave effective immediately. | Kevin Turnage; Endreya McCabe | 5 U.S.C. § 2302(b)(8); Whistleblower Protection Act |

| Date | Time | Event Description | Involved Parties | Legal or Regulatory Reference |
|---|---|---|---|---|
| Friday, June 27, 2025 | 01:40 PM | Reported CAP compliance violations under laboratory accreditation standards. | Kevin Turnage; College of American Pathologists | CAP Laboratory Standards |
| Friday, June 27, 2025 | 02:49 PM | Submitted report to HHS OIG and HQ HR Director alleging obstruction of PX3147 duties and whistleblower retaliation. | Kevin Turnage; HHS OIG; HQ HR Director | 5 U.S.C. § 2302(b)(8); PX3147 |
| Tuesday, July 8, 2025 | 08:30 AM | Email from Endreya McCabe denying that Turnage's FMLA was retaliatory and stating her belief there was no whistleblower activity. | Endreya McCabe, Kevin Turnage | 5 U.S.C. § 2302(b)(8); FMLA |
| Tuesday, July 8, 2025 | 07:40 AM | Email response from Ty Reidhead dismissing formal appeal and referring Turnage back to Phoenix Area HR. | Ty Reidhead, Kevin Turnage | 5 U.S.C. § 2302(b)(8); IHS HR Policy |
| Monday, July 7, 2025 | 04:02 PM | Formal appeal to Ty Reidhead detailing timeline of retaliation and requesting intervention regarding illegal leave and duty removal. | Kevin Turnage, Ty Reidhead | 5 U.S.C. § 2302(b); Title VII; IHS Directive |
| Monday, July 7, 2025 | 10:45 AM | Email to Ty Reidhead detailing previous OSC and OIG disclosures and formally appealing actions taken by PIMC leadership. | Kevin Turnage, Ty Reidhead | 5 U.S.C. § 2302(b)(8); Indian Health Manual |
| Monday, July 7, 2025 | 08:52 AM | Birdshead email with attached rebuttal regarding HR action; reinforced that Turnage was engaged in protected disclosures and policy enforcement. | Kevin Turnage, Birdshead, IHS Phoenix Area | 5 U.S.C. § 2302(b)(8); IHS HR Policy |
| Friday, July 11, 2025 | 10:47 AM | Received a call from Dr. McCabe, she informed me that the leave was being changed from Administrative Leave to now 30 days of Investigative Leave. Informed me that I would receive a new letter by end of day today. She stated that this is leave with pay and that it would not be held against me or my PMAP. Call ended 11:29 42 minutes in length | Kevin Turnage, Endreya McCabe | 5 U.S.C. §§ 7512(2), 2302(b)(8)-(9); 5 C.F.R. § 752.404(b)(1); Brown v. DOI, 121 M.S.P.R. 205 (2014); IHM Part 7, Ch. 1 – Personnel Policies |
| Friday, July 11, 2025 | 11:30 AM | On July 11, 2025, I was verbally notified by Dr. Endreya McCabe that my leave status was being converted from Administrative Leave to 30 days of Investigative Leave. Despite assurances that written confirmation would be provided by the close of business that day, no such documentation was received. Under *Indian Health Manual (IHM), Part 7, Chapter 1* – Personnel Management – changes in employment status that affect an employee's ability to perform their duties must be formally documented and justified in writing. The absence of written notice, combined with my removal from all operational, supervisory, and access responsibilities, constitutes an unauthorized action that may qualify as a constructive suspension under 5 U.S.C. § 7512. This lack of procedural compliance also raises concerns under the Merit Systems Principles and the Whistleblower Protection Act, including 5 U.S.C. § 2302(b)(8)–(9). | Kevin Turnage | 5 U.S.C. §§ 7512(2), 2302(b)(8)-(9); 5 C.F.R. § 752.404(b)(1); Brown v. DOI, 121 M.S.P.R. 205 (2014); IHM Part 7, Ch. 1 – Personnel Policies |
| Friday, July 18, 2025 | 10:38 AM | Phone Call from Dr. Endreya McCabe<br><br>Duration: Approximately 17 minutes<br><br>Purpose of Call: Dr. McCabe initiated contact to inform me that I had been instructed via email earlier that morning to return all IHS government-issued property by 12:00 PM noon the same day. I was unaware of the email until receiving this call.<br><br>Key Points Discussed:<br><br>She reiterated that all items — including PIV card, laptop, cell phone, keys, etc. — were to be surrendered to her or a designated official by noon.<br><br>I requested clarification regarding the location and process.<br><br>The tone of the call was formal but pressing. No justification was offered for the abrupt deadline. She even stated "I do not understand why they are making such a big deal about it if you do not have access to anything anyway."<br><br>I expressed concern about the short notice and intent to comply reasonably and securely.<br><br>Contextual Concern: The directive was presented as immediate and mandatory, despite the fact that:<br><br>I had not seen the email prior to the call,<br><br>I am currently on investigative leave,<br><br>No operational emergency or policy justification was cited,<br><br>The timeline allowed less than 90 minutes for compliance after actual notice. My Wife was present at the time of the phone call. | Kevin Turnage, Endreya McCabe, Dora Birdshead, Michelle Rossell | 5 U.S.C. § 2302(b)(8)-(9), Whistleblower Protection Act (WPA) |
| Friday, July 18, 2025 | 10:38 AM | Email Time Sent: 7:08 AM (MT)<br><br>Email First Viewed: 10:38 AM (after phone call)<br><br>Subject: Request for Return of Government Property<br><br>Sender: Dr. Endreya McCabe<br><br>CC Recipients:<br><br>Dora Birdshead, Employee Relations Officer, IHS Phoenix Area<br><br>Michelle Rossell, Director, Southeast Region Human Resources Center (SAC: GANC8)<br><br>Summary:<br><br>Directed the return of all assigned government property (PIV card, laptop, iPhone, keys, etc.) by 12:00 noon.<br><br>Indicated flexibility on timing but imposed an unreasonably narrow compliance window.<br><br>No operational, security, or legal rationale provided for the demand. Dr. McCabe, Ms. Birdshead (Employee Relations), and Ms. Rossell (Regional Director) are all likely aware of ongoing whistleblower, OSC, and EEO matters. Their inclusion on the email strengthens the inference of coordinated retaliatory action. | Kevin Turnage, Endreya McCabe, Dora Birdshead, Michelle Rossell | . |
| Friday, July 18, 2025 | 12:42 PM | Filed Supplemental Pleading with MPSB under DE-0752-1215-1 | Kevin Turnage | |
| Wednesday, July 30, 2025 | 10:50 PM | Email to Endreya McCabe requesting leave and demanding restored access to ITAS. | Endreya McCabe and Jeff Hemp LIUNA 5251 | |
| Tuesday, August 26, 2025 | 11:35 AM | Sent notice to Dr. McCabe that investigative leave expires today; cited 5 U.S.C. § 6329b(b)(5). | Kevin Turnage, Endreya McCabe, Dora Birdshead, Debra Ward Lund, Emily Drake, Kathy Dill, Ty Reidhead, DANIEL FRYE | Agency must return to duty, reassign, or initiate action. |
| | 12:44 PM | Dr. McCabe Sent email with unsigned draft "Request for Approval of Investigative Leave Extension." | Endreya McCabe, Kevin Turnage | Not a valid written determination under 5 C.F.R. § 630.1503(b). |
| | 4:16 PM | Dr. McCabe Sent different memo attempting to extend leave to Oct. 8, 2025. | Endreya McCabe, Kevin Turnage | Exceeds 30-day OPM limit; lacks proper procedural basis. |
| | 6:00 PM | Kevin Turnage Replied noting no lawful extension received; requested clarification. | Endreya McCabe, Kevin Turnage | Preserves record of agency's procedural failure. |
| | 7:14 PM | Endreya McCabe Reiterated that memo was sent earlier; no new action taken. | Kevin Turnage, Endreya McCabe, Dora Birdshead, Debra Ward Lund, Emily Drake, Kathy Dill, Ty Reidhead, DANIEL FRYE | Confirms agency asserting retroactive extension without legal basis. |
| | All Day | Subject to ongoing facility ban; no return-to-duty instructions. | Endreya McCabe, Kevin Turnage | Meets involuntariness test for constructive suspension. |
| Tuesday, September 9, 2025 | 2:09 PM | Joshua Namingha sends email to Turnage's government email demanding he complete SF-85P and get fingerprinted within by COB 09/16/2025 | Joshua Namingha, Endreya McCabe | 5 U.S.C. § 6329bGoverns investigative leave procedures<br>5 U.S.C. § 552a (Privacy Act)Requires PII protection and Privacy Act Statements<br>44 U.S.C. § 3551 (FISMA)Mandates secure data handling<br>NIST SP 800-122Federal guidance on PII protection<br>5 U.S.C. § 2302(b)(8)-(9)Prohibits retaliation for whistleblowing or EEO activity<br>42 U.S.C. § 2000e-3(a) (Title VII)Prohibits EEO retaliation<br>5 CFR Part 731Governs suitability and background checks<br>5 U.S.C. § 7513Due process in adverse actions |
| | 3:20 PM | Endreya McCabe forwards email to Personal email address for Kevin Turnage | Endreya McCabe, Kevin Turnage | Privacy Act (5 U.S.C. § 552a) Failure to protect PII / unauthorized facilitation of insecure PII transmission<br>FISMA (44 U.S.C. § 3551)Enabling unauthorized or insecure handling of federal information<br>Whistleblower Protection Act (5 U.S.C. § 2302(b)(8)-(9))Potential retaliation or abuse of authority<br>IHS / HHS Email & IT Security PoliciesImproper forwarding of sensitive government business to non-secure personal email accounts<br>Constructive Interference with Due ProcessCreating directives that may serve as a pretext for later adverse action |
| | 4:33 PM | Turnage Turnage responds to the agency's demand for a background reinvestigation by stating he cannot comply with the five-day deadline. He explains that his inability to comply is a direct result of the agency disabling his government email and blocking his PIV card access. In the email, Turnage asserts his due process rights and formally requests the official notification letter for the reinvestigation, the name and contact information of the deciding official, clarification of the "information of security concern" prompting the action, and a complete copy of his OPM investigative file. | Kevin Turnage, Endreya McCabe, Joshua Namingha, Irene M Marquez-Garner, Tasha Bigman | 5 U.S.C. Chapter 75 and 5 C.F.R. Part 752. |
| Monday, November 24, 2025 | 8:37 AM | Received email from Dr. McCabe with unsigned word attachment dated 11/21/2025 placing me on Notice Leave until further notice. | Kevin Turnage, Endreya McCabe | |
| Monday, November 24, 2025 | 9:24 AM | Received 2nd email from Dr. McCabe with same notice Leave with Digital Signature in pdf dated 11/21/2025 signed 11/24/2025 09:22:09 -0700' | Kevin Turnage, Endreya McCabe | |
| Tuesday, November 25, 2025 | 9:31 AM | Email sent requesting deficiencies be corrected | Kevin Turnage, Endrea McCabe, Kathy Dill, Dora Birdshead, Kristine Smith, Jeff Hemp, Emily Drake, Stephanie Aird | |
| Tuesday, December 2, 2025 | 2:37 PM | Received response from Victoria Gray stating"I will speak with the agency and respond to your email as soon as possible." | Kevin Turnage, Victoria Gray | |